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THE DOCTRINE OF CHRISTIAN DISCOVERY AND DOMINATION: HOW IT HAS BEEN USED BY UNITED STATES COURTS TO DENY TREATY RIGHTS & DISMISS THE HAUDENOSAUNEE LAND RIGHTS CASES

Abstract

This article examines how the doctrine of Christian discovery and domination continues to serve as the foundational legal justification used by United States courts to deny treaty rights and dismiss Indigenous land rights claims, with particular focus on Haudenosaunee nations. Centering the Supreme Court's decision in *City of Sherrill v. Oneida Indian Nation* (2005), the article critiques the Court's revival of colonial doctrine through a fabricated "equitable" defense mislabeled as laches. It traces Sherrill's jurisprudential roots to *Johnson v. M'Intosh* (1823), where Chief Justice John Marshall embedded Christian European claims of domination into United States law as a mechanism for Indigenous dispossession.

The article analyzes how the Second Circuit quickly dismissed the Cayuga, Oneida, and Onondaga land rights actions, despite undisputed treaty violations, constitutional breaches, and illegal land takings by New York State. These decisions reveal the creation of a distinct and shifting set of equitable rules applied only to Indigenous land claims, consistently privileging settler expectations over Indigenous sovereignty and justice.

Beyond domestic litigation, the article addresses the Onondaga Nation's turn to international human rights forums, including its successful petition before the Inter-American Commission on Human Rights, and highlights the recent return of 1,000 acres of ancestral land as evidence that land justice is neither disruptive nor impractical. The article concludes by urging Indigenous law practitioners to directly confront and demand repudiation of the doctrine of Christian discovery, reaffirming treaty supremacy and international human rights as essential foundations for justice and healing.

Keywords: Christian discovery, Christian domination, treaty rights, Indigenous land rights, European claims, ancestral land, Indigenous land, colonization, racial equality, land justice, Indigenous land reclamation, and treaty enforcement.

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On March 29, 2005, the Supreme Court issued the landmark decision in *City of Sherrill v. Oneida Indian Nation*, 544 US 197 (2005), which re-affirmed the central role of the doctrine of Christian discovery and domination as the fundamental legal excuse to deny treaty rights for Indigenous nations and peoples, by the United States courts.

This article will review and critique the *Sherrill* decision, trace its origins back to the 1823 *Johnson v. M'Intosh* decision in which Chief Justice John Marshall initially invoked the doctrine as a foundation of United States dispossession, and finally the use of *Sherrill* by the Second Circuit to dismiss three Haudenosaunee land rights cases, two of which had been pending for decades.

It is the position of the Onondaga Nation and the author that this racist, colonial "doctrine" must be removed from US law, so that the federal courts can return to working towards true justice and healing from the thefts of Indigenous lands, and the genocide and ethnic cleansing of Indigenous peoples.

Within months of the decision, the Second Circuit used *Sherrill* as the basis to dismiss the pending Cayuga Nation land claim and in so doing, declared that Sherrill "has dramatically altered the legal landscape"[1] for Indigenous nations' land rights cases.

Factual and Legal Background of Sherrill:

After earlier court decisions which had ruled that it could not reclaim illegally taken homelands in the federal court system, the Oneida Nation had started to purchase properties from willing sellers, within the boundaries of its reservation, which had been recognized by the 1794 Treaty of Canandaigua. Because this land had been under the sovereign jurisdiction of the Nation before New York knowingly violated the three treaties, the Constitution and the 1790 Trade and Intercourse Act,[2] the Oneidas took the position that any properties which they obtained on the open market should be sovereign and under their full jurisdiction once again.

Therefore, the Oneidas correctly refused to pay the local property taxes, and the City brought the dispute into state court to foreclose and to collect the unpaid taxes.[3] There was no dispute that the properties in question were within the Canandaigua recognized Oneida reservation, which has not been terminated or diminished.

Despite this undisputed historical and factual background, the Supreme Court, in an 8 to 1 decision in *Sherrill*, ruled that the City was authorized to tax and regulate the property, and in the process of reaching this incorrect conclusion, the Court concocted a new "equitable" defense, which it improperly and inaccurately labeled as "laches."

Further, in creating this new defense out of thin air, the Court ignored many of the fundamental principles of equity—such as that a party invoking an equitable defense must have "clean hands" and must not have been the original wrong doer, as the State had been.

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[1] *Cayuga Indian Nation v. Pataki*, 413 F. 3d 266, 273 (2nd Cir., 2005).

[2] 25 U.S.C. § 177

[3] New York law specifically prohibits the taxation of lands owned by an Indigenous nations within a reservation. See: Indian Law § 6 and RPAPL § 354.

Also, courts are required to "balance the equities," by examining the harm to each party from different rulings.

Clearly, the harm to the Nations and their citizens from the loss of millions of acres of ancestral homelands and waters was far greater than the falsely claimed revenue loss of the City, and yet this equitable principle was not even discussed and the harms were not even acknowledged. Also, equitable jurisprudence mandates that when there has been an injury or harm, which is clearly the case in these matters, there must be a legal remedy from the courts.

Much has been written by legal scholars in sharp criticism of this unprecedented, rogue decision which has been called the *Plessy v. Ferguson*[4] of Indian law—because rather then correcting the history of white supremacy and the colonial onslaught against Indigenous peoples, it re-affirmed the colonial rule inherent in the doctrine of Christian discovery and domination.

Once again, when the Court was faced with balancing the rights of Indigenous peoples against those of the settlers, it reverted to its colonial pattern of always elevating the perceived "rights" of the settlers, at the expense of the Indigenous peoples. This has been an essentially unbroken pattern over the past 200 years, as the US legal system has consistently concocted rulings to justify the illegal takings of Indigenous lands.

The United States could not have been created and then expanded across Turtle Island without the colonial seizure of Indigenous lands, the genocide of Indigenous peoples and the concerted efforts to "kill the Indian and save the man", via the never-ending programs of forced assimilation.

Sherrill's Reliance on the Doctrine of Discovery:

The first footnote in *Sherrill* removes all doubt about the illegitimacy of its holding, and the clear re-affirmation of the doctrine of Christian discovery and denomination, as it states that:

> Under the "doctrine of discovery," fee title to the lands occupied by Indians when the colonists arrived became vested in the sovereign—first the discovering European nation and later the original States and the United States. . . . Both before and after the adoption of the Constitution, New York acquired vast tracts of land from Indian tribes through treaties it independently negotiated, without National Government participation.[5]

There is much cleverly hidden messaging in this footnote and it bears closer examination and discussion. Initially, it quietly embraces the doctrine of Christian discovery and domination as the central theme and basis of US Indian law. This should help us understand that one of our primary focuses of work going forward is to have this racist, colonial doctrine denounced and removed.

The second sentence in the footnote is remarkable to the extent that it glosses over the illegal ways that New York took the ancestral Haudenosaunee homelands. The Constitution made it completely clear that only the US could take Indian lands. Further, no theory of international law authorizes individual states within the United States to enter treaties. Finally, the 1790 Trade and Intercourse Act reinforced the principles that any taking by any party which

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[4] 163 U.S. 537 (1896).

[5] *City of Sherrill v. Oneida* Nation, 544 U.S. 197, 203 (2005).

purported to take Indian lands without federal involvement and subsequent federal ratification was void.

This second sentence recognizes that many of New York's illegal takings occurred after the Constitution was effective in March of 1789, and after the 1790 Trade and Intercourse Act, which clearly made such takings illegal and void. The facts acknowledged in this second sentence essentially document that New York repeatedly violated federal laws when it illegally took millions of acres of Onondaga and Haudenosaunee homelands. Remarkably, despite this clear acknowledgment of illegal land thefts, the decision brushed aside this inconvenient truth, which should have precluded awarding New York equitable relief, and ruled in favor of New York.

None of these historic realities seem to matter, as the Court rushed to concoct the new "equitable" defense, which only applies to Indigenous nations' land rights actions. This attempt to ignore inconvenient historic facts in the process of creating such a blatantly inequitable result, fails all tests of intellectual, moral and ethical integrity and must be addressed and corrected.

Sherrill Traces Back to & Is Directly Based on Johnson V. M'intosh:

In 1823, Chief Justice John Marshall authored *Johnson v. M'Intosh*,[6] which involved a dispute between the two parties, both of whom claimed to have purchased the title to Indigenous lands in Illinois—one directly from the Indigenous nations living on and caring for the lands, and the other from the US government. In his book, *Conquest by Law*, Professor Lindsay Robertson exposed that these parties colluded to pay each other's lawyer and cooperated in order to claim a dispute and to get the case before Marshall so that the Court could create a justification for speculation and profiteering in Indigenous lands. Marshall and his family were notorious land speculators, who profited greatly from buying and flipping Indigenous lands-even while the Indigenous peoples were still living on and taking care of the lands.

In *Johnson*, Marshall wrote:

> The Indians were admitted to be the rightful occupants of the soil, with a legal as well as just claim to retain possession of it, and to use it according to their own discretion' but their rights to complete sovereignty, as independent nations, were necessarily diminished, and . . . Discovery gave exclusive titles to those who make it.
>
> [T]he different Nations of Europe. . . Asserted the ultimate dominion to be in themselves; and claimed and exercised, as a consequence of this ultimate dominion, a power to grant the soil, while yet in possession of the natives.

Marshall apparently recognized how preposterous this colonial claim of the "right" to title of Indigenous lands, and so he attempted to justify it with this sentence:

> However extravagant the pretension of converting the discovery of inhabited country into conquest may appear, if the principle has been asserted in the first instance, and afterwards sustained; if a country has been acquired and held under it; if the property of the great mass of the community originates in it, it becomes the law of the land and cannot be questioned.

So, as long as white, Christian Europeans made a claim, and repeat that claim—no matter how "extravagant"—Marshall wrote that this justifies the theft of the Indigenous lands. This

[6] *Johnson v. McIntosh*, 21 U.S. 543 (1823).

arrogant claim was absurd 200 years ago, but it is even more preposterous today, with the international recognition of the rights of Indigenous peoples.

Direct Connection: Sherrill, Johnson & Doctrine of Discovery – Resulted in the Dismissals of Haudenosaunee Land Rights Actions:

The *Sherrill* decision came down on March 28, 2005[7] and less than three months later, on June 26, 2005, the Second Circuit used that deeply flawed opinion as the basis to dismiss the Cayuga Nation land claim. After 30 years of litigation in the District Court, and several hearings and a jury trial on damages, all that the Cayugas has been awarded in the lower court was a monetary award of $247 million , which was to be paid by the State of New York. This is far from a disruptive outcome.

Nevertheless, the Circuit, in a two to one vote, decided to dismiss the entire case based on the *Sherrill* decision, and in the process of justifying this dismissal, wrote:

> The Supreme Court's recent decision in Sherrill has dramatically altered the legal landscape against which we consider plaintiffs' [Indian nations' land] claims.
>
> We understand *Sherrill* to hold that equitable doctrines, such as laches, acquiescence, and impossibility, can, in appropriate circumstances, be applied to Indian land claims, even when such a claim is legally viable and within the statute of limitations.[8]

The Circuit's attempt to justify this incorrect application of equitable principles by tossing in a couple of additional equitable defenses into their decision demonstrates their understanding that this purported "laches" defense in Sherrill is out of step with proper equitable principles and jurisprudence. The Circuit seems to understand and subsequently admitted, that its dismissal decision needs to be justified because it is such an outlier:

> One of the few incontestable propositions about this usually complex and confusing area of law is that doctrines and categorizations applicable in other areas do not translate neatly into these claims.[9]

Here, they admit that they have constructed a different set of rules and principles, which only apply to Indigenous land rights action, and all this manipulation of equitable principle is then proclaimed to be "equitable".

The 2010 Dismissal of the Oneida Nation Land Claim – More Fast Footwork to Deny Justice:

Even while scholarly criticism of *Sherrill* and the *Cayuga* dismissal mounted, the Circuit proceeded to dismiss the Oneida Nation land claim, and in so doing, attempted to justify its abandonment of true equity (at least as it applies to Indigenous nations) and to find additional justifications for these unfair rulings and dismissals.

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[7] This was only 18 days after the filing of the Onondaga Nation's Land Rights Action in the Northern District of New York.

[8] 413 F. 3d at 273.

[9] 41 F. 3d at 276.

On August 9, 2010, the Circuit handed down its decision to dismiss the Oneida Nation land claim which had been pending for four decades. [10] This ruling attempted to deflect some of the mounting criticism:

> We have used the term "laches" here . . . as a convenient shorthand for the equitable principles at stake in this case, but the term is somewhat imprecise for the purposes of deciding these principles. The Oneidas assert that the invocation of a purported laches defense is improper here because the defendants have not established the necessary elements of such a defense. This omission, however, is not ultimately important, as the equitable defense recognized in *Sherrill* and applied in *Cayuga* does not focus on the elements of traditional laches.[11]

Once again, when pressed the Circuit admitted that an entirely different set of rules applies to Indigenous land rights litigation, and that these rules seem to morph over time, but always to the detriment of the Indigenous nations and peoples.

The 2012 Dismissal of the Onondaga Nation Land Rights Action – Yet A Different Attempt at Justification:

As noted above, the *Sherrill* decision was on March 28, 2005, just 18 days after the Onondaga Nation had filed its Land Rights Action in the Northern District of New York. The Nation promptly amended its Complaint, to counter some of the unfounded findings in *Sherrill*. The Nation also filed over 1000 pages of affidavits from historians and legal scholars which directly contradicted each of the incorrect assumptions in the *Sherrill* decision.

None of this proof mattered, and on September 22, 2010, the Northern District Court dismissed the Onondaga Land Rights Action.[12] Oral argument in the Second Circuit on the Nation's appeal of that dismissal was held on Columbus Day—October 12, 2012, with only 10 minutes of argument permitted. One week later, the Circuit issued a Summary Order which affirmed the denial.[13] The Nation's Motion for *en banc* review was denied by the Circuit on December 21, 2012.

In its affirmance of the District Court's dismissal, the Circuit was clear that Sherrill and the doctrine of Christian discovery and domination were the central link connecting the three dismissals of Cayuga, Oneida and Onondaga, and that United State courts were closed to these historic treaty violations:

> This appeal is decided on the basis of the equitable bar on recovery of ancestral land in Sherril, and this court's cases of Cayuga and Oneida. Three specific factors determine when ancestral land claims are foreclosed on equitable grounds: (1) the length of time at issue between the historic injustice and the present day; (2) the disruptive nature of claims long delayed; and (3) the degree to which these claims ups the justifiable expectations of individuals and entities far removed from the events giving rise to the plaintiffs' injury.[14]

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[10] see: *Oneida Indian Nation v. City of Oneida*, 617 F. 3d 114 (2nd Cir. 2010).

[11] 617 F. 2d at 127.

[12] 2010 WL 3806492 (NDNY 2010.)

[13] 500 Fed. Appx. 87 (2d Cir. 2012).

[14] 500 Fed. Appx. at 68.

It should be remembered that the Onondaga Complaint only requested the limited relief of two declaratory judgments: (a) that New York had taken the Onondaga homelands in knowing violations of the Constitution, the three Treaties and the Trade and Intercourse Act; and (b) that according to the provisions of the Trade and Intercourse Act, the takings were void. These are not disruptive remedies, and the Nation had submitted substantial proof that their land rights action had not caused any disruption in Central New York. However, neither history, nor facts, nor law, nor true equity mattered, as the federal courts trampled on Haudenosaunee land rights.

The final step in the federal court's shameful treatment of Onondaga's Land Rights Action came on October 15, 2013, when the United State Supreme Court dismissed our Petition for Certiorari.[15]

Raising The Land Thefts, Treaty Violation and Human Rights Violations in an International Forum – Onondaga Nation's Petition Against the United States in the O.A.S. Interamerican Commission on Human Rights:

After this dismissal and affirmance of that dismissal by the United State courts, the Nation had "exhausted its domestic remedies"—a necessary prerequisite before it could bring this dispute to an international forum. Consequently, on April 14, 2014, the Nation filed a Petition in the IACHR, which charged the United States with three human rights violations:

a) For allowing the lands to be taken illegally,

b) For allowing Onondaga Lake and so many others to be irreparably polluted by a century of dumping of industrial wastes and toxic chemicals, and

c) For a court system which fails to provide any remedy for treaty violations.

The United State's response was not vigorous, primarily because their main defense was that any decision by the Commission will be non-binding and in its arrogance the US can simply choose to ignore it. They also said that the injuries were too old and that the US government has a perfectly protective system for taking care of Indigenous lands, through the mis-named "trust" system.

Onondaga submitted substantial briefings in the IACHR and, on May 12, 2023, succeeded in having its Petition become the first such Petition by an Indigenous nation against the US, to be accepted as "admissible". This phrase is a term of art in this international forum, and it basically means that our Petition has survived a motion to dismiss. The Petition now awaits a decision by the Commission on the merits, as to whether the United States has committed the three charged human rights violations.

Finally, A Small Step Towards Land Justice – The Return Of 1000 Acres of Onondaga Ancestral Land to Nation Jurisdiction and Stewardship:

A central component of the Onondaga Nation's 240 years of perseverance to regain their stolen lands and waters has always been their emphasis on diplomacy and government-to-government relationships. This approach is consistent with the Great Law of Peace and has eventually been successful in establishing more positive relationships with both the federal government and some branches of the New York State government. Additionally, the Nation

[15] 571 U.S. 969 (2013).

and its leaders have devoted a great deal of time and resources to educating their neighbors about the true history and injustices of the land thefts.

This diplomacy and intra-government interactions finally resulted in the return of the title of 1000 acres to the Nation on September 27, 2024. These acres include the headwaters of Onondaga Creek, which still supports a struggling brook trout population. The Nation has begun a brook trout restoration project, in cooperation with the SUNY School of Environmental Sciences and its Center for the Study of Indigenous Peoples and the Environment.

The agreement for this return of the 1000 acres was facilitated by high levels of the US Interior Department's Solicitor's office and by high levels of New York State Attorney General, Tish James's office.

This transfer of title and jurisdiction to the Nation has been widely covered in the media—nationally, statewide and locally. It has not been disruptive in any manner but has been widely supported and recognized as a small and proper step and long overdue.

Legal Resistance to the Doctrine – An Excellent, Recent Example:

Fortunately, we have a recent, positive example of how Indigenous law practitioners can and should confront the doctrine of Christian discovery and domination, whenever the United States or the various states attempt to use it to attack sovereignty and treaty rights. In August of 2017, the Confederate Tribes and Bands of the Yakama Nation filed an Amicus Curiae brief in the US Supreme Court, in a tax dispute case—*Washington State Department of Licensing v. Cougar Den, Inc., A Yakama Corporation*.[16]

The case involved a state road-use tax, which the Nation argued was precluded by the 1859 Treaty with the Yakamas, and in its introduction, this Amicus brief argued that:

> The State's arguments . . . [a]ll are rooted in the doctrine of Christian discovery rather than the Yakama Treaty, and should not be applied here. The "doctrine of Christian discovery" is the legal fiction that Christian Europeans immediately and automatically acquired legally recognized property rights in our lands upon reaching the Americas, thereby diminishing our sovereignty. Courts have used the doctrine to build a false legal framework to attack Native sovereignty, which the State attempts to deploy here. . . . The Court should expressly repudiate the doctrine and instead rely on the Yakama Treaty as the foundation for its analysis in this dispute.

In its substantive legal arguments, the Amicus brief continued:

> The Yakama Treaty is the organic document establishing the government-to-government relationship between the United States and the Yakama Nation. It serves as the basis for any dispute concerning our rights. However, courts have systematically attempted to undermine our Treaty rights by imposed an imaginary prior relationship sourced in the doctrine of Christian discovery,. Under that doctrine, this Court judicially manufactured an extra-constitutional congressional plenary authority to abrogate treaties and regulate Native Nations. The manufactured authority rests on the false assumption that our sovereignty and free and independent existence were "necessarily diminished" upon Christian European arrival on the North American

[16] Case # 16-1498.

> continent.[17] For nearly two centuries this Court has dehumanized original, free, and independent Nations and Peoples by issuing decisions and using language consistent with this doctrine's religious and racist foundations—e.g., red men, uncivilized, barbarous, ignorant, unlearned, non-Christians, heathens, savages, infidels—all in an effort to manufacture a legal basis for the physical and cultural genocide of Native Peoples.

Although the Court did not directly mention this Amicus Brief and its direct confrontation of the doctrine of Christian discovery and domination, the Court did rule in favor of the Yakama—that the state tax was precluded by the 1859 Treaty with the Yakama.[18]

I would submit that this is the type of legal writing and arguments which every Indigenous law practitioner should be raising, in every case and at every opportunity. We must follow this excellent example of reminding the United States courts that the doctrine of Christian discovery and domination, along with its companion "plenary power" fiction, are invalid, racist, immoral and that these concepts must be repudiated by the courts. After all, "treaties are the supreme law of the land."[19]

Conclusion:

Legal practitioners who represent Indigenous nations are strongly encouraged to understand the importance of removing the racist doctrine of Christian discovery and domination from United States Indian law and in securing the reversal of the *Sherril* decision. At every available opportunity, we must attack this doctrine and demand its removal. We must also take every opportunity to educate that there is no Constitutional basis for the claim of plenary power.

Briefs similar to the Yakama Amicus Brief should be submitted in every case where the opportunity presents itself. Beyond such individual efforts, there needs to be a much better understanding of the doctrine among Indigenous law practitioners, as some writings have been generated since Sherrill, which claim that the doctrine has never been used by a US court to limit Indigenous nations' sovereignty.

We need to learn from the lessons set by Thurgood Marshall and the NAACP legal Defense fund and their systematic, long term planning to gain the legal victory in *Brown v. Board of Education*.[20] They used social sciences and psychology to document the harms to children of color by the systematic white supremacy of segregation. They carefully planned and executed a plan to bring the best case, factually and legally, into the court system, to enable the courts to correct that historic injustice.

We also need to understand that US courts do not operate in a vacuum and that outside, political and moral pressures can be felt in the courts. Conferences such as this one are essential in sharing our knowledge and work and in educating more of our fellow practitioners, so that more cases can be filed and pursued to keep challenging the court for true justice.

Finally, we need to remember the wisdom of the Onondaga and Haudenosaunee elders—that we may never achieve true justice in the colonial courts of the US, and that we must continue to work to bring cases against the US in international forums. Along with these efforts, we

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[17] Here the Brief directly cites *Johnson v. McIntosh*,21 U.S. 543, at 574 (1823).

[18] *See* (?) 586 U.S. 349 (2019).

[19] U.S. Constitution, art. VI, cl. 2.

[20] 348 U.S. 886 (1954).

must all also escalate our efforts towards the implementation of the United Nation Declaration on the Rights of Indigenous Peoples. The fundamental, colonial based ruling of the US courts can no longer claim to be equitable and this farce must be exposed and the US needs to be shamed into correcting these centuries of injustice.